

be construed as extending the legislative powers of the Parliament of Northern Ireland under section four of the Government of Ireland Act, 1920.

Short title and citation.

4. This Act may be cited as the Therapeutic Substances (Prevention of Misuse) Act, 1953, and this Act and the Penicillin Acts, 1947 and 1951, may be cited together as the Therapeutic Substances (Prevention of Misuse) Acts, 1947 to 1953.

CHAPTER 33

Education (Miscellaneous Provisions) Act, 1953

ARRANGEMENT OF SECTIONS

Section

1. Extension of definition of "displaced pupils" for purposes of s. 104 of principal Act.
2. Power of Minister, in certain circumstances, to require local education authority to defray expenses of establishing a controlled school.
3. Extension of power of Minister to require local education authority to pay for enlargement of a controlled school.
4. Duties of local education authorities in England and Wales as to dental treatment.
5. Duties of education authorities in Scotland as to dental treatment.
6. Provision of education at non-maintained schools and payment of tuition and boarding fees for pupils attending thereat.
7. Recoupment to local education authority of cost of providing further education for persons not belonging to their area.
8. Amendments of ss. 103 to 105 of principal Act as to matters in respect of which Minister may make grants and loans.
9. Amendment of s. 85 of principal Act.
10. Amendment of procedure for making school attendance orders.
11. Amendment of principal Act with respect to enforcement of school attendance.
12. Provisions with respect to transport of certain pupils.
13. Removal of disqualification of persons employed in schools, &c., for appointment to children's committees.
14. Power of Minister to modify certain trusts.
15. Relaxation of obligation to send to Minister assurances of property for educational purposes.
16. Reduction of period for objection to proposals for establishment, maintenance or discontinuance of schools.

Section

17. Miscellaneous amendments and repeals.
18. Provisions as to regulations.
19. Expenses.
20. Short title, citation, construction and extent.

SCHEDULES:

First Schedule—Minor and Consequential Amendments.

Second Schedule—Enactments Repealed.

An Act to amend the law relating to education in England and Wales; and to make further provision with respect to the duties of education authorities in Scotland as to dental treatment. [14th July 1953.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. For the purposes of section one hundred and four of the Education Act, 1944, in this Act referred to as "the principal Act" (which empowers the Minister, where he directs that a school proposed to be established shall be an aided school or a special agreement school and is satisfied that the establishment of the school is due to the need to provide education for a substantial number of displaced pupils, to pay to the managers or governors of the school a grant not exceeding one half of so much of the amount expended in constructing the school as is in his opinion attributable to the provision of education for such pupils), the expression "displaced pupils" shall, in relation to a proposed school, include pupils who, in consequence of action taken or proposed to be taken under the enactments relating to housing or to town and country planning, have ceased to reside in the area served by some other aided school or special agreement school, being—

Extension of definition of "displaced pupils" for purposes of s. 104 of principal Act.

- (a) pupils for whom education was being provided in that other school immediately before they ceased to reside in the area served by it; or
- (b) pupils, other than as aforesaid, for whom education would, in the opinion of the Minister, have been provided in that other school had they continued to reside in the area served by it.

Power of Minister, in certain circumstances, to require local education authority to defray expenses of establishing a controlled school.

2. Where—

- (a) any persons submit, under subsection (2) of section thirteen of the principal Act, to the Minister proposals for the establishment by them, or by persons whom they represent, of a new school (otherwise than by way of the enlargement of an existing school) and for its maintenance by the local education authority as a voluntary school ; and
- (b) the persons who submit the proposals and the local education authority show to the satisfaction of the Minister that the establishment of the school is required for the purpose of providing accommodation for pupils for whom accommodation would have been provided in some other voluntary school if that other school had not been discontinued or had not otherwise ceased to be available for the purpose ; and
- (c) no application is made under subsection (2) of section fifteen of the principal Act to the Minister for an order directing that the school shall be an aided school or a special agreement school ;

the Minister may by order direct that the whole, or a specified part, of so much of the cost incurred in the establishment of the school as would, apart from the order, fall to be defrayed by the persons who establish it shall be defrayed by the local education authority.

Extension of power of Minister to require local education authority to pay for enlargement of a controlled school.

3. Subsection (1) of section one of the Education Act, 1946 (which empowers the Minister, if satisfied that it is expedient that a controlled school should be enlarged and that the enlargement is wholly or mainly required for the purpose of providing accommodation for pupils for whom accommodation would have been provided in some other voluntary school if that other school had not been discontinued or had not otherwise ceased to be available for the purpose, to direct that the expense of giving effect to proposals for carrying out the enlargement shall be payable by the local education authority) shall have effect as if, at the beginning of paragraph (b) thereof, there were inserted the words “ either (i) ”, and as if, at the end of that paragraph, there were added the words—

“ or

- (ii) that the enlargement is desirable for the better provision of secondary education at the premises to be enlarged or for securing that there is available for the area of the authority a sufficiency of suitable secondary schools or for both those reasons, and is not likely to amount to the establishment of a school of a new character ”.

4.—(1) It shall be the duty of every local education authority to make such arrangements as are necessary for securing that there are available for pupils for whom primary, secondary or further education is provided by them at a school or county college maintained by them comprehensive facilities for free dental treatment provided either—

Duties of local education authorities in England and Wales as to dental treatment.

- (a) by persons employed or engaged by, and at the expense of, the authority, either regularly (whether whole-time or part-time) or for the purposes of particular cases ; or
- (b) under arrangements made by a Regional Hospital Board or the Board of Governors of a teaching hospital within the meaning of the National Health Service Act, 1946 ;

or partly in the one way and partly in the other ; and every local education authority shall have power to make arrangements for rendering available, to senior pupils for whom secondary or further education is provided by the authority at any other educational establishment maintained by them, any facilities which they have caused to be made available in the discharge of the duty imposed on them by the foregoing provisions of this subsection.

(2) Subsections (4) and (5) of section forty-eight of the principal Act (which provide for encouraging pupils to take advantage of facilities for medical treatment provided under that section and for requiring the managers or governors of a voluntary school to provide facilities for the purpose of enabling the local education authority to carry out their functions under that section), shall have effect as if references to the facilities mentioned in subsection (3) of that section, medical treatment provided under that section and functions of the local education authority under that section included respectively references to facilities rendered available in pursuance of subsection (1) of this section, dental treatment provided under that subsection and functions of a local education authority under that subsection.

5.—(1) It shall be the duty of every education authority to make such arrangements as are necessary for securing that there are available for pupils in attendance at any public school and young persons in attendance at any junior college or other educational establishment under their management comprehensive facilities for free dental treatment provided either—

Duties of education authorities in Scotland as to dental treatment.

- (a) by persons employed or engaged by, and at the expense of, the authority, either regularly (whether whole-time or part-time) or for the purposes of particular cases ; or
- (b) under arrangements made by a Regional Hospital Board within the meaning of the National Health Service (Scotland) Act, 1947 ;

or partly in the one way and partly in the other; and every education authority shall have power to make arrangements for rendering available to other pupils in attendance at any educational establishment under their management any facilities which they have caused to be made available in the discharge of the duty imposed on them by the foregoing provisions of this subsection.

(2) Subsections (4) to (7) of section fifty-one of the Education (Scotland) Act, 1946 (which provide for encouraging pupils to take advantage of facilities for medical treatment provided under that section, for the medical supervision and treatment of pupils being educated under special arrangements or at schools and other educational establishments not under the management of an education authority, and for the furnishing of information to the Secretary of State) shall have effect as if the references to the facilities mentioned in subsection (3) of that section, to medical treatment provided under that section and to functions of the education authority under that section included respectively references to the facilities rendered available in pursuance of subsection (1) of this section, to dental treatment provided under that subsection and to functions of an education authority under that subsection.

(3) In subsection (1) of section one hundred and forty-three of the Education (Scotland) Act, 1946, in the definition of "medical treatment" the words "or by any person registered under the Dentists Act, 1878" are hereby repealed.

(4) This section shall be construed as one with the Education (Scotland) Acts, 1939 to 1949, and may be cited together with those Acts as the Education (Scotland) Acts, 1939 to 1953.

(5) This section shall extend to Scotland only.

Provision of education at non-maintained schools and payment of tuition and boarding fees for pupils attending thereat.

6.—(1) For the purpose of fulfilling their duties under the principal Act, a local education authority shall have, and be deemed always to have had, power to make, with the approval of the Minister, arrangements for the provision of primary and secondary education for pupils at a school not maintained by them or another local education authority.

(2) Where, in pursuance of arrangements made by a local education authority by virtue of the foregoing subsection or section thirty-three of the principal Act, primary or secondary education is provided for a pupil at a school not maintained by them or another local education authority, the authority by whom the arrangements are made—

(a) shall, in the following cases, that is to say—

(i) where the pupil fills a place in the school which the proprietors of the school have put at the disposal

of the authority and the school is one in respect of which grants are made by the Minister under paragraph (b) of subsection (1) of section one hundred of the principal Act,

(ii) where the authority are satisfied that, by reason of a shortage of places in schools maintained by them and schools maintained by other local education authorities, being schools to which the pupil could be sent with reasonable convenience, education suitable to the age, ability and aptitude of the pupil cannot be provided by them for him except at a school not maintained by them or another local education authority,

(iii) where, in a case not falling within either of the two foregoing sub-paragraphs, the authority are satisfied that the pupil requires special educational treatment and that it is expedient in his interests that such treatment should be provided for him at a special school not maintained by them or another local education authority,

pay the whole of the fees payable in respect of the education provided in pursuance of the arrangements ;

(b) shall, where board and lodging are provided for the pupil at the school and the authority are satisfied that education suitable to his age, ability and aptitude cannot be provided by them for him at any school unless board and lodging are also provided for him (either at school or elsewhere), pay the whole of the fees payable in respect of the board and lodging.

(3) The powers conferred on a local education authority by subsection (1) of this section shall be in addition to and not in derogation of the powers conferred on them by the principal Act.

7.—(1) Where any provision for further education is made by a local education authority in respect of a pupil who belongs to the area of another such authority, and that other authority have consented to the making of the provision, the providing authority shall, upon making a claim in that behalf within the prescribed period, be entitled to recoupment from the other authority of the prescribed fraction, or (if it is so prescribed) the whole, of the amount of the cost to the providing authority of the provision, the amount being determined by agreement between the authorities or, in default of agreement, by the Minister.

Recoupment to local education authority of cost of providing further education for persons not belonging to their area.

(2) Where any provision for further education is made by a local education authority in respect of a pupil who does not belong to the area of any such authority, the providing authority

shall, upon making a claim in that behalf within the prescribed period, be entitled to recoupment of the prescribed fraction, or (if it is so prescribed) the whole, of the amount aforesaid, in accordance with regulations to be made by the Minister for securing that the cost of such provision in such cases is apportioned amongst all local education authorities, the amount in that case being determined in accordance with the regulations.

(3) A local education authority may make a payment by way of recoupment to another such authority of the cost incurred by the other authority in making any provision for further education in respect of a pupil belonging to the area of the paying authority notwithstanding that the paying authority are not under a legal obligation to make the payment.

(4) Subsection (2) of section six of the Education (Miscellaneous Provisions) Act, 1948 (which lays down a rule for determining, for the purposes of the enactments relating to education, whether a pupil shall be treated as belonging to the area of a particular local education authority or as not belonging to the area of any such authority) and subsection (3) of that section (which contains exceptions from the rule) shall not apply for the purposes of this section; but for the purposes of this section a pupil shall be treated as belonging to the area of a particular local education authority or as not belonging to the area of any such authority in accordance with the following rule, namely:—

(a) if the pupil is ordinarily resident within the area of a local education authority, he shall be treated as belonging to the area of that authority; and

(b) if the pupil is not so resident, he shall be treated as not belonging to the area of any local education authority;

but that rule shall be subject to the exception that, in such cases as may be prescribed, a pupil shall be treated for the purposes of this section in accordance with the regulations either as belonging to the area of a prescribed local education authority or as not belonging to the area of any such authority.

(5) Any question whether a pupil ought to be treated as belonging to the area of any particular local education authority, or as not belonging to the area of any such authority, shall, in case of dispute, be determined by the Minister.

(6) References in this section to provision for education include references to the provision of any benefits or services for which provision is made by or under the enactments relating to education.

(7) This section shall have effect as respects provision for further education only in so far as the cost of the provision is attributable to any period after the passing of this Act and, so far as relating to voluntary payments, shall so have effect in

substitution for subsection (5) of section six of the Education (Miscellaneous Provisions) Act, 1948, so far as that subsection relates to further education.

8.—(1) Subsection (1) of section one hundred and three of the principal Act (which empowers the Minister to pay to the managers or governors of a voluntary school proposed to be transferred to a new site or established in substitution for any discontinued school or schools and to be maintained as an aided school or a special agreement school a grant not exceeding one-half of any sums expended by them in the construction of the school) shall—

Amendments
of ss. 103 to
105 of
principal Act
as to matters
in respect of
which
Minister may
make grants
and loans.

(a) in relation to a school of which the transfer has been authorised by the Minister, have effect as if, for the reference therein to the construction of the school, there were substituted a reference to the provision (whether before or after the passing of this Act) of the school buildings ; and

(b) in relation to a school of which the establishment has been directed by the Minister to be in substitution for a school or schools to be discontinued, have effect as if, for the reference therein to the construction of the school, there were substituted a reference to the provision (whether before or after the passing of this Act) of a site for the school and of the school buildings.

(2) Subsection (1) of section one hundred and four of the principal Act shall have effect as if, for the reference therein to the construction of the school, there were substituted a reference to the provision (whether before or after the passing of this Act) of a site for the school and of the school buildings.

(3) Section one hundred and five of the principal Act (which empowers the Minister to make to the managers or governors of an aided school or a special agreement school a loan for the purpose of helping them to meet capital expenditure involved in defraying their share of the initial expenses relating to the school specified in subsection (2) of that section) shall have effect—

(a) as if the reference in paragraph (a) of that subsection to expenses to be incurred in defraying the cost of any alterations required by the development plan approved by the Minister for the area included a reference to expenses incurred before the passing of this Act or to be incurred thereafter in defraying the cost of any alterations specified in that plan as submitted to the Minister, being alterations to the carrying out of which the Minister has given approval before the approval by him of the plan ; and

(b) as if, for the reference in paragraph (c) of that subsection to expenses to be incurred in the construction of any school which, by virtue of an order made under section sixteen of the principal Act, is deemed not to be a newly established school or is deemed to be in substitution for any discontinued school or schools, there were substituted a reference to expenses incurred before the passing of this Act or to be incurred thereafter—

(i) in the case of a school which, by virtue of an order under subsection (1) of the said section sixteen, is deemed not to be a newly established school, in providing the school buildings ;

(ii) in the case of a school which, by virtue of subsection (2) of that section, is deemed to be in substitution for any discontinued school or schools, in providing a site for the school and in providing the school buildings.

Amendment
of s. 85 of
principal Act.

9.—(1) For subsection (3) of section eighty-five of the principal Act (which section provides, amongst other things, that, after the commencement of Part II of that Act, a local education authority shall not be constituted trustees of any school for providing primary or secondary education, other than a nursery school or a special school, except after the submission to the Minister of proposals for that purpose), there shall be substituted the following subsection :—

“(3) Any school for providing primary or secondary education which, in pursuance of proposals in that behalf submitted under this section to the Minister, is vested in a local education authority as trustees thereof, shall be a county school”.

(2) This section shall be deemed to have had effect as from the commencement of Part II of the principal Act.

Amendment
of procedure
for making
school
attendance
orders.

10. Subsection (2) of section thirty-seven of the principal Act shall, in relation to the service of a school attendance order upon a parent in consequence of his failure to satisfy a local education authority, in accordance with the requirements of a notice served on him under subsection (1) of that section after the passing of this Act, that a child is receiving efficient full-time education suitable to his age, ability and aptitude, have effect with the substitution, for the proviso thereto, of the following proviso :—

“Provided that—

(a) no such order shall be served by the authority upon the parent until the expiration of the period of fourteen

days beginning with the day next following that on which they have served upon him a written notice of their intention to serve the order stating that if, before the expiration of that period, he selects a school at which he desires the child to become a registered pupil, that school will, unless the Minister otherwise directs, be named in the order; and

- (b) if, before the expiration of that period, the parent selects such a school as aforesaid, that school shall, unless the Minister otherwise directs, be so named ”.

11.—(1) For subsection (4) of section forty of the principal Act (which section provides for the enforcement of school attendance) there shall be substituted the following subsection :—

Amendment
of principal
Act with
respect to
enforcement
of school
attendance.

“ (4) Without prejudice to the institution of proceedings for an offence against the last foregoing section or the exercise of the power conferred by subsection (3) of this section on a court to give a direction for the bringing of a child before a juvenile court, where a child of compulsory school age who is a registered pupil at a school fails to attend regularly thereat, the competent local education authority may of their own motion, if satisfied that it is necessary so to do for the purpose of securing the regular attendance of the child at school, bring the child before a juvenile court, and, where a child is brought before a juvenile court by virtue of this subsection, that court shall have the like power as is conferred on such a court by the said subsection (3).

For the purposes of this subsection—

- (a) where the child in question belongs to the area of a local education authority, that authority and the local education authority for the area in which the school is shall each be a competent local education authority ;
- (b) where the child in question does not belong to the area of any local education authority, the competent local education authority shall be the local education authority for the area in which the school is ”.

(2) In subsection (5) of the said section forty, after the words “ juvenile court ”, in the first place where they occur, there shall be inserted the words “ and a child brought before such a court by virtue of subsection (4) of this section ”.

12.—(1) Subject to the provisions of this section, a local education authority shall have power, for the purpose of facilitating the attendance at any school or county college or at any course or class provided in pursuance of a scheme of further education in force for their area of pupils for whose transport free of charge

Provisions
with respect
to transport
of certain
pupils.

no arrangements are made by the authority under subsection (1) of section fifty-five of the principal Act, to permit such pupils, in consideration of the payment to the authority of fares of such amounts as appear to them to be reasonable, to be carried in a motor vehicle used for providing transport in pursuance of arrangements made under that subsection :

Provided that—

- (a) the powers conferred by this subsection on a local education authority shall not be exercisable by them in respect of any part of the route on which a vehicle runs in pursuance of any such arrangements, being a part outside the special area, except with the written consent of the licensing authority for public service vehicles in whose area that part of the route is situate, and shall not be exercisable by them in respect of any part of such a route, being a part within the special area, except with the written consent both of the licensing authority for public service vehicles for that area and of the British Transport Commission ; and
- (b) the licensing authority for public service vehicles for any area shall not give their consent to an exercise by a local education authority of the powers conferred on them by this section unless they are satisfied that there are no other transport facilities which meet the reasonable needs of the pupils proposed to be carried in exercise of those powers.

(2) A motor vehicle used for providing transport in pursuance of arrangements made under the said subsection (1) shall not, for the purposes of Part IV of the Road Traffic Act, 1930, be deemed, in the case of a vehicle belonging to a local education authority, to be a public service vehicle, or, in any other case, to be a stage carriage or express carriage, by reason only of the carriage therein of a person who is charged a fare by virtue of the foregoing subsection.

(3) In this section the expression “special area” has the meaning assigned to it by subsection (1) of section one hundred and seven of the London Passenger Transport Act, 1933.

Removal of
disqualification
of persons
employed in
schools, &c., for
appointment
to children's
committees.

13.—(1) Section ninety-four of the Local Government Act, 1933, shall have effect as if, in the proviso thereto (which provides that a person shall not, by reason of his being a teacher in, or being otherwise employed in, an educational institution maintained or assisted by a local education authority, be disqualified for being a member of a committee or sub-committee

of a local authority outside London appointed for the purposes mentioned in that proviso), the word "or" were omitted at the end of paragraph (b) and the following words were inserted at the end of paragraph (c), namely:—

"or

- (d) appointed for the purposes of their functions under the enactments mentioned in subsection (1) of section thirty-nine of the Children Act, 1948".

(2) Section sixty-four of the London Government Act, 1939, shall have effect as if, in the proviso thereto (which makes, in relation to membership of certain committees and sub-committees of the London County Council, provision corresponding to that made by the proviso to the said section ninety-four in relation to membership of committees and sub-committees of other local authorities), after the words "of the education committee," there were inserted the words "of the children's committee".

14. Where any premises used for the purposes of a voluntary school are held by trustees upon trusts which permit the use of the premises to be diverted to other purposes, the Minister may, upon application in that behalf made by the trustees, by order direct that, so long as the school is maintained by a local education authority, the instrument constituting the trusts shall have effect subject to such modifications as may be prescribed by the order for securing that the use of the premises shall not be so diverted.

Power of
Minister to
modify certain
trusts.

15.—(1) Subsection (2) of section eighty-seven of the principal Act (which provides that an assurance of land or of personal estate to be laid out in the purchase of land shall, if the land or the income thereof is to be used for educational purposes, be void unless the assurance or a copy thereof is sent to the Minister within six months after the date on which the assurance takes effect) shall not apply to an assurance of land or personal estate to a local education authority, a university, a university college or a college of a university, being an assurance taking effect after the passing of this Act; and accordingly, in that subsection, the words "including every assurance of land to any local education authority" shall cease to have effect as respects any such assurance taking effect as aforesaid.

Relaxation of
obligation
to send to
Minister
assurances of
property for
educational
purposes.

(2) For the purposes of the foregoing subsection the expression "college of a university" has the same meaning as it has for the purposes of subsection (5) of section two of the Education (Miscellaneous Provisions) Act, 1948.

(3) Nothing in subsection (1) of this section shall be construed as requiring any assurance or copy of an assurance to be sent to the offices of the Charity Commissioners in accordance with subsection (4) of section twenty-nine of the Settled Land Act, 1925.

Reduction of period for objection to proposals for establishment, maintenance or discontinuance of schools.

16. Subsection (3) of section thirteen of the principal Act (which empowers certain persons to submit to the Minister, within three months after the first publication of notice of proposals submitted to him under that section for the establishment, maintenance or discontinuance of a school, objections to the proposals) shall, in relation to proposals whereof notice is first published after the passing of this Act, have effect with the substitution, for the reference to three months, of a reference to two months.

Miscellaneous amendments and repeals.

17.—(1) The provisions of the principal Act and the Education (Miscellaneous Provisions) Act, 1948, specified in the first column of the First Schedule to this Act shall have effect subject to the amendments specified in the second column of that Schedule (being amendments relating to minor matters and amendments consequential on the provisions of this Act).

(2) The enactments mentioned in the first and second columns of the Second Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

Provisions as to regulations.

18. Any power conferred by this Act on the Minister to make regulations shall be exercisable by statutory instrument which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Expenses.

19. Any increase attributable to the provisions of this Act in the sums which under any enactment are defrayed out of moneys provided by Parliament, shall be defrayed out of moneys so provided.

Short title, citation, construction and extent.

20.—(1) This Act may be cited as the Education (Miscellaneous Provisions) Act, 1953.

(2) This Act, except section five thereof, and the Education Acts, 1944 to 1948, may be cited together as the Education Acts, 1944 to 1953.

(3) This Act, except as aforesaid, shall be construed as one with the Education Acts, 1944 to 1948.

(4) References in this Act to any other enactment shall, except so far as the context otherwise requires, be construed as references to that enactment as amended by or under any other enactment, including this Act.

(5) This Act, except sections five and nineteen thereof, shall not extend to Scotland.

(6) This Act shall not extend to Northern Ireland.

SCHEDULES

FIRST SCHEDULE

Section 17.

MINOR AND CONSEQUENTIAL AMENDMENTS

*Enactment amended
and subject
matter thereof*

Amendment

The Principal Act

Section thirteen,
subsection (6).

(Duty to submit
to Minister plans
and specifications
of proposed new
school)

For the words "shall submit to him" there shall be substituted the words "shall, unless they do not intend to give effect to the proposals, submit to him".

Section thirty-three,
subsection (2).

(Making of
arrangements by
local education
authority for the
special educational
treatment of
pupils)

For the words "in any school maintained or assisted by a local education authority" there shall be substituted the words "in any school maintained by a local education authority or in any school not so maintained, other than one notified by the Minister to the local education authority to be, in his opinion, unsuitable for the purpose".

Section seventy-eight

(Provision of
ancillary services
for pupils not in
attendance at main-
tained schools)

In subsection (1), for the words "medical treatment" there shall be substituted the words "medical or dental treatment", and in subsection (2) for the words "medical treatment" there shall be substituted the words "medical and dental treatment".

Section seventy-nine

(Supplementary
provisions as to
medical inspection
and treatment)

For the words "medical treatment" there shall be substituted the words "medical and dental treatment".

Section one hundred

(Grants in aid of
educational ser-
vices)

In subsection (1), in paragraph (a), and in subsection (2), for the words "the medical inspection and treatment" there shall be substituted the words "the medical inspection and the medical and dental treatment".

Section one hundred
and fourteen, sub-
section (1).

(Interpretation)

In the definition of "medical inspection", for the words "or by a person registered under the Dentists Act, 1878" there shall be substituted the words "or by a person registered in the dentists register under the Dentists Acts, 1878 to 1923".

1ST SCH.
—cont.

*Enactment amended
and subject
matter thereof*

Amendment

The Education (Miscellaneous Provisions) Act, 1948

Section five, sub- At the end of the subsection there shall be
section (1). added the following words “ and they may
also provide clothing for a pupil for whom
they are providing board and lodging else-
(Power of local where than at an educational institution so
education authority maintained, being a pupil receiving special
to provide clothing educational treatment provided by them or
for certain pupils at by another authority or person in pursuance
educational institu- of arrangements made by them ”.

(Power of local
education authority
to provide clothing
for certain pupils at
educational institu-
tions maintained by
them)

Section 17.

SECOND SCHEDULE

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
7 & 8 Geo. 6. c. 31.	The Education Act, 1944.	In section one hundred and three, subsection (2). In section one hundred and four, in subsection (2), the words from “ and (b) any sum expended ” to the end of the subsection. In section one hundred and fourteen, in subsection (1), in the definition of “ medical treatment ”, the words “ or by any person registered under the Dentists Act, 1878 ”.
11 & 12 Geo. 6. c. 40.	The Education (Miscellaneous Provisions) Act, 1948.	In the First Schedule, in Part I, the entry relating to section thirty-three of the principal Act.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Dentists Act, 1878	41 & 42 Vict. c. 33.
Settled Land Act, 1925	15 & 16 Geo. 5. c. 18.
Road Traffic Act, 1930	20 & 21 Geo. 5. c. 43.
London Passenger Transport Act, 1933	23 & 24 Geo. 5. c. 14.
Local Government Act, 1933	23 & 24 Geo. 5. c. 51.
London Government Act, 1939	2 & 3 Geo. 6. c. 40.
Education Act, 1944	7 & 8 Geo. 6. c. 31.
Education Act, 1946	9 & 10 Geo. 6. c. 50.
Education (Scotland) Act, 1946	9 & 10 Geo. 6. c. 72.
National Health Service Act, 1946	9 & 10 Geo. 6. c. 81.
National Health Service (Scotland) Act, 1947	10 & 11 Geo. 6. c. 27.
Education (Miscellaneous Provisions) Act, 1948	11 & 12 Geo. 6. c. 40.
Children Act, 1948	11 & 12 Geo. 6. c. 43.